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Supreme Court, U. S.

F I L E D

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No. 95-354

In The
Supreme Court of the United States
October Term, 1995

JAMES O'CONNOR,

Petitioner,

vs.

CONSOLIDATED COIN CATERERS CORP.,

Respondent.

On Writ Of Certiorari
To The United States Court Of Appeals
For The Fourth Circuit

REPLY BRIEF OF PETITIONER

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REPLY ARGUMENT

Review was granted in this case solely to consider whether, in an age discrimination case, the plaintiff must show, as part of his prima facie case¹ under *McDonnell Douglas v. Green*, 411 U.S. 792 (1973), that her or his replacement was a person who was younger than age 40, the minimum age for employees to be protected against age discrimination. Nonetheless, respondent devotes the large majority of its brief to seeking affirmance on a Question Presented in the Petition that was not accepted by the Court – whether summary judgment was proper against petitioner even if his replacement was under age 40. Although we do not believe the latter question is properly before the Court, we will address it, in Section 3 of this brief, after replying to respondent's brief discussion of the issue that has been accepted for review.²

Respondent acknowledges that, as we argued in our opening brief, the purpose of the *McDonnell Douglas* scheme is to establish a framework for deciding whether,

¹ The *amicus* Chamber of Commerce points out, Br. 6 n.3, that petitioner's brief (and indeed every other brief filed) used the phrases "prima facie case" when what was more precisely meant was "presumption." But, since the Court continues to use "prima facie case" for the *McDonnell Douglas* presumption, so also will petitioner. See, *St. Mary's Honor Center v. Hicks*, 113 S. Ct. 2742, 2751 (1993).

² The brief of the respondent's *amicus* Equal Employment Advisory Council strays even further from the question presented in its claim that petitioner seeks to avoid showing that he was performing at a satisfactory level. Petitioner acknowledges his obligation in that regard and believes that he has met that burden as defined in *McDonnell Douglas*. This issue is also addressed very briefly in Section 3 of this brief.

if the defendant offers no non-discriminatory explanation for its adverse employment decision, the fact-finder could properly infer a discriminatory motive. In our opening brief, we argued first that the *McDonnell Douglas* scheme does not require any showing about the characteristics of the employees who were hired or retained in place of the discrimination plaintiff, and second that, even if characteristics of the replacement should be considered at this stage, the only question should be whether the replacement was younger than the plaintiff, not whether the replacement was too young to be protected by the ADEA at all. In this reply brief, we begin by addressing each of these questions, and then respond to the various alternate grounds for affirmance of the decision below that are presented by respondent and its *amici*.

1. If The Replacement's Age Is To Be Considered At All, It Should Suffice That The Replacement Is Younger, Without Deciding The Extent Of The Difference.

Assuming that it is necessary to consider at least some of the characteristics of the replacement employee at all, respondent argues that, as a matter of experience, almost all replacements will be younger than the alleged victims of age discrimination. Accordingly, it contends, no inference of discrimination can be drawn merely because a younger person took the job of an older one. Br. at 25. Instead, it argues, the Court should allow a *prima facie* case only when there is a bright line between the plaintiff and the replacement. Because membership *vel non* in the protected class is a bright line that has an explicit basis in the statute, respondent argues that this

should be the fact that makes or breaks an ADEA *prima facie* case.³

There are several difficulties with that approach. First, to the extent that it considers characteristics of the replacement, together with the statistical likelihoods that replacements will have certain characteristics, it calls into question the utility of *McDonnell Douglas* in many Title VII cases. Thus, for example, more than 80% of the Americans are white, and so, statistically speaking, when a black employee is replaced it is more likely than not that the replacement will be white. Similarly, in national origin discrimination cases, when an Italian-American employee is replaced, it is quite likely that the new worker will be of some other national origin. And most workers do not exercise their rights under Title VII; thus, when a worker who exercises those rights is replaced or passed over (the precise facts in *McDonnell Douglas*), it is quite likely that the worker who is hired or retained will be one who did not exercise his or her rights under the statute. These likelihoods, however, do not warrant discarding the *McDonnell Douglas* scheme in race, national origin, or retaliation cases under Title VII.

Nor is there a good reason to hold that a *McDonnell Douglas* *prima facie* case must include proof of particular degrees of age differential. The defect identified by the Fourth Circuit here was that petitioner's replacement was 40, which it considered to be "too old" to enable him to establish a *prima facie* case, whereas if his replacement

³ The brief of the National Retail Federation, at 1-2, assures the Court that younger employees really are better. Its argument is with Congress, however.

had been 39, he would have met his burden. But if the purpose of the test is to assure that only permissible inferences of discrimination are allowed to go forward, it is difficult to justify ruling as a matter of law, in two cases with identical facts except that the replacement in one is 39 and the other 41, that an age discrimination plaintiff aged 65 would be entitled to proceed in one but not in the other. Indeed, under respondent's analysis, because age 40 is the magic dividing line, the two replacements could be born within a week of one another, and the results different, so long as the date of replacement fell between their two birthdays. Thus, so far as the Fourth Circuit drew a sharp line at age 40, that line is wholly irrational in terms of the permissibility or not of drawing an inference of discrimination regarding the defendant's conduct.

There is no reason to import these matters into the *prima facie* case. To be sure, the fact that the replacement worker was over 40 can be argued to the fact finder as evidence to support an inference of no discrimination. And, of course, as the age of the replacement worker approaches that of the plaintiff, the inference of age discrimination grows progressively weaker, just as it grows stronger as the gap in ages increases. But these matters are best considered in conjunction with justifications that the employer articulates in response to the plaintiff's *prima facie* case.

The addition of a requirement of showing anything at all about the replacement creates opportunities for discriminatory employers to find a replacement who will insulate them from liability. The employer can simply hire an older replacement until the threat of suit passes. *Loeb v. Textron, Inc.*, 600 F.2d 1003, 1013 n.9 (1st Cir. 1979).

A large employer with a small minority contingent could dismiss all its minority employees and require that the remaining employees take up the slack. *Meiri v. Dacon*, 759 F.2d 989, 996 n.9 (2d Cir. 1985). Discrimination in the workplace is varying and manifold in its manifestations, and the rule proposed by respondent would inflexibly prevent plaintiffs from making a case of discrimination even when discrimination in fact occurred.

The *amicus* Chamber of Commerce's plea for a bright line, ten-year difference should also be rejected. Apart from the dubious authority for the Court to draw bright lines comparable to a statute of limitations when Congress has not done so, there is nothing magical about a ten year difference in terms of the intent of the employer. To be sure, the extent of the age difference between the hired and fired will often be highly probative of a discriminatory intent or lack of one, but in the end that difference is only one factor that will be weighed by the jury along with the rest of the evidence. More importantly, a ten year dividing line would be a blueprint for evasion: just replace the fired worker with someone less than 10 years younger, and keep doing it forever. The only dividing line that the law allows is that the hired worker be younger than the fired worker; everything else goes to the strength of the inference.

The addition of a requirement of showing replacement characteristics is also inadequately general to serve as an element of a presumption. The *McDonnell Douglas* presumption is artfully designed to be available to all who may be affected by unacknowledged discrimination. Adding a "substantially younger" requirement, for an example, will make the presumption underinclusive

because not all cases of actual discrimination will involve a substantially younger replacement. The Fourth Circuit rule is so especially underinclusive as to be irrational in its coverage. It is underinclusive particularly for older claimants, who are less likely to be replaced by persons under 40. See, *McCorstin v. United States Steel Corp.*, 621 F.2d 749, 754 (5th Cir. 1980) ("Because of the value of experience, rarely are sixty-year olds replaced by those under forty"). It is irrational because it bears no relation whatever to the prohibitions of the ADEA, which prohibits discrimination against "any individual" on the basis of "such individual's age," 29 U.S.C. § 623(a)(1), not discrimination vis-a-vis persons under 40.

The various suggested additional fourth elements will just create more litigation without assuring any greater reliability. A "substantially younger" requirement, for example, would soon produce a different age difference in every circuit and would be uncertain and uneven in its application. A discharged employee may not know who replaced him, much less know whether a complex reorganization was discriminatory. In large companies the replacement may be selected by a person other than the terminator, and in this circumstance the replacement's age has no evidentiary force at all. Our national policy against employment discrimination requires that the presumption of discrimination be kept simple and inclusive, to maximize relief to victims of unlawful employment discrimination.⁴

⁴ Respondent, but not any of its amici, appears to claim that four circuits have recently held in favor of the under-40 requirement. Br. at 21-22. None of the cited cases so held. As for

2. The Court Should Decline To Reformulate The McDonnell Douglas Prima Facie Case Presumption Because There Are No Pertinent Distinctions Between A Title VII Refusal-To-Hire Case Such As *McDonnell Douglas* And The ADEA Firing-And-Replacement Case Presented Here.

Respondent argues that it is necessary to consider the age of the replacement employee because, if the replacement is close in age to the plaintiff, that makes it much less likely that the age of the plaintiff was the reason for his adverse treatment. Appealing to the fact that the reason for the *McDonnell Douglas* scheme was to eliminate the most likely justifications for discharge, and thus

Meinecke v. H&R Block of Houston, 66 F.3d 77 (5th Cir. 1995), Respondent quotes only a portion of the case. The Court clearly says in the same paragraph which respondent incompletely quotes that "replace[ment] by someone younger" is sufficient. 66 F.3d at 83. As for *Walker v. NationsBank of Florida N.A.*, 53 F.3d 1548, 1556 (11th Cir. 1995) (Title VII), the quoted statement is dictum because the replacement was age 24. The Eleventh Circuit adheres to the "younger" rule when the issue is presented. *Corbin v. Southland Intern. Trucks*, 25 F.3d 1545, 1549 (11th Cir. 1994) (ADEA). Respondent cites *Hughes v. Brown*, 20 F.3d 745 (7th Cir. 1994) (Title VII), but it is dictum because a person of a different race was given the promotion at issue. The law of the Seventh Circuit is, as held in the later case of *Kralman v. Illinois Dept. of Veteran's Affairs*, 23 F.3d 150, 155 (7th Cir. 1994), that a "younger" replacement is all that must be shown. Finally, Respondent cites *Sondhi v. Lockheed Missiles and Space Co.*, No. 93-17207, 1995 U.S. App. Lexis 31263, at *15-16 (9th Cir. Aug. 1, 1995), an unpublished decision. Petitioner does correctly quote this case; but *Sondhi* itself erroneously claims that its rule derives from *Wallis v. J.R. Simplot*, 26 F.3d 885, 891 (9th Cir. 1994). The *Wallis* requirement was, however, "replace[ment] by a substantially younger employee."

avoid the need to litigate frivolous or weak cases, respondents suggest that this is a good addition to the prima facie case.

We have no doubt that there are a variety of pieces of evidence that might make it less likely that the employer had a discriminatory reason for its action. But if courts are willing to consider the age of the beneficiary of the discrimination, then it is, indeed, somewhat difficult to see why other characteristics of the beneficiary should not be considered. Why not the question of how good a worker he is? Why not his daily production statistics? Surely, everything that will eventually become relevant to the ultimate question of discrimination can be imported into the construction of the prima facie case.

What this line of analysis ignores, however, is that the genius of the prima facie case is its very simplicity. The prima facie case focuses on objective characteristics of the plaintiff, which can easily be shown by the plaintiff based on his own knowledge, and without substantial discovery, in deciding whether the case should go forward to the next stage at which the employer must provide responses which, in turn, must be evaluated in light of the evidence.

The elements of the *McDonnell Douglas* prima facie case were not idly formulated. The unanimous Court that formulated them did not include any element looking to the characteristics of the person who ultimately filled the job or any other matter of defense, despite that the record presented strong defense evidence of job-related criminal conduct by the applicant. *McDonnell Douglas Corp. v.*

Green, 411 U.S. 792 (1973). Likewise, in *Furnco Construction Co. v. Waters*, 438 U.S. 567 (1978), a unanimous Court⁵ again held that the presumption did not require any showing of qualifications of persons who got the job or other matters of employer defense, despite the employer's showing that it had hired 16% black bricklayers in a labor market that had only 5.7% available black bricklayers. 438 U.S. at 571-2. Replacement characteristics were not inadvertently omitted, but were omitted because they were not needed in order to eliminate "the two most common reasons on which an employer might rely," lack of qualifications and lack of vacancy. *Teamsters v. United States*, 431 U.S. 324, 358 n.44 (1977). Matters of defense were relegated to a later stage in the proof scheme. The Court has recently again indicated, in a hypothetical strikingly similar to the case at bar, that the presumption applies without consideration of defensive matters. In *St. Mary's Honor Center v. Hicks*, 113 S.Ct. 2742, 2750-51 (1993), the Court posed a hypothetical in which a black job applicant was rejected by a black decisionmaker. Rejection by a decisionmaker of the same race is substantially equivalent, in terms of evidentiary weight, to replacement by a substantially younger worker; yet the presumption there applied was as originally formulated in *McDonnell Douglas*, and the race of the decisionmaker thus was not an element of it.

⁵ Justice Marshall wrote a separate concurring and dissenting opinion for himself and Justice Brennan in which he explicitly agreed with the Court's opinion on the prima facie case issue. 438 U.S. at 582.

Respondent and its *amici* argue that characteristics of the replacement employee must be added to the prima facie ADEA case, but they do this without attempting to say why this case is different from *McDonnell Douglas* in any relevant aspect. There is nothing about the ADEA as opposed to Title VII, or about a failure-to-hire case as opposed to a firing-and-replacement case, that should disturb the presumption so carefully laid down in *McDonnell Douglas*. No opposing brief states any material difference between these cases. Certainly the two most common reasons for not hiring or for dismissing an employee are the same in both cases.

A presumption is a set of facts which has been judicially or legislatively determined to create an inference if the set of facts is proven by a preponderance of the evidence. Fishman, *Jones On Evidence*, § 4.2, at pp. 301-02 (7th ed., 1992). A presumption is a crystallized inference. Presumptions are created for one or more of three main reasons: to correct an imbalance resulting from one party's superior access to proof; for reasons of social or economic policy; and based on inherent probability. *Ibid.*, §§ 4:4-4:8. All three reasons are promoted by the *McDonnell Douglas* presumption. First, the Court has specifically identified inherent probability as one reason for the *McDonnell Douglas* presumption. *Furnco*, 438 U.S. at 577 ("these acts . . . are more likely than not based on the consideration of impermissible factors") (emphasis added). Second, in many cases, especially those involving large employers, a claimant will not know the age of his replacement, so lack of access to proof is another reason for not requiring any showing of characteristics of the

replacement. The presumption promotes procedural fairness by ensuring that discrimination plaintiffs have their day in court despite the often insuperable difficulty of obtaining direct evidence of discriminatory intent. *Trans World Airlines, Inc. v. Thurston*, 469 U.S. 111, 121 (1985). Third, the strong national policy against employment discrimination underlies the presumption. *Cf.*, *Keyes v. School Dist. No. 1*, 413 U.S. 189, 208 (1973).

Presumed facts are not always true; some properly addressed, stamped and mailed letters fail to reach their destination. *Rosenthal v. Walker*, 111 U.S. 185 (1884). Nevertheless, the presumption creates a legal inference in the absence of evidence to the contrary. So too, the termination of a qualified protected employee, without explanation, from a position that the employer needed to have filled, creates a legitimate suspicion that the termination was motivated by discrimination on the basis of age. *McDonnell Douglas* and *Furnco* indicated that no showing of replacement characteristics or any other matter of defense needed to be shown initially by the claimant. Those cases have weighed the risk of error and decided that it is more than overbalanced by the employer's opportunity to make a rebuttal showing of its reasons. No reasons have been advanced as to why the Court should change this basic judgment.

In sum, we urge the Court to reaffirm this basic teaching of *McDonnell Douglas*, that none of the characteristics of the replacement need to be considered, making it unnecessary to consider the remaining arguments in this reply brief.

3. The Issues Of Whether Petitioner Presented A Direct Or Circumstantial Case, And Whether Petitioner Was More Qualified Than His Replacement, Are Not Before The Court; If They Were, Ample Evidence Was Presented.

The circuit court held that petitioner had not made out a prima facie case because his replacement was not under 40. The circuit court then held that the case should not be analyzed as a reduction in force, and further that petitioner had produced insufficient direct and circumstantial evidence. The Petition for Certiorari presented the "under-40" question and the direct and circumstantial evidence question. There was no Cross-Petition. Review was granted only on the "under-40" question. Respondent now seeks to have the Court affirm on the issue which the Court declined to hear, and which neither petitioner nor the EEOC have briefed, arguing that petitioner presented no direct or circumstantial evidence beyond the age difference between petitioner and his replacement and indeed that petitioner lacked sufficient qualifications by comparison with his replacement. Br. 36-38. *Amicus* Equal Employment Advisory Council joins in this surprise attack as well, arguing that no prima facie case can be shown unless the claimant "was performing up to his employer's legitimate expectations." Br. at 14, quoting *Collier v. Budd Co.*, 66 F.3d 886, 889 (7th Cir. 1995). These questions are not before the Court. Certiorari was not granted on them, and the EEOC now has no opportunity to brief them. It is neither fair nor appropriate to allow them to be injected into the case at this point.

If these questions were before the Court, however, ample direct and circumstantial evidence was presented

that petitioner had been discriminated against on account of his age and that he was more qualified than his replacement.

Petitioner showed a 12-year history of successful performance as a manager, R.53 at attached Trial Exhibit 1, and particularly a successful performance in 1989, the year before he volunteered to move to Charlotte to take over a troubled division. His 1989 year-end performance evaluation, by Ed Williams, the man who fired him eight months later, was "commendable minus." R.53 at attached Trial Exhibit 4. In respondent's lexicon "commendable" means "a seasoned employee who is looked upon as a production or conceptual leader within an area." R.53 at attached Trial Exhibit 3. Petitioner received the largest performance bonus in the company for 1989. R.53, Plaintiff's Affidavit 4. Six months later Williams began to make age-biased remarks to him. Most tellingly, in the latter part of July 1990, Williams said, "O'Connor, you are too damn old for this kind of work." R.49 at attached O'Connor Dep. I, 47. This remark could have been made immediately after Williams decided to discharge Petitioner.⁶

Respondent claimed that Petitioner was not even considered for the new job because Williams had earlier reduced his territory. *See*, Pet. App. 12., 56 F.3d at 547

⁶ The "too damn old" remark occurred "in the latter part of July." R.49 at attached O'Connor Dep. I, 46. Williams testified that his boss, Ted Arts, called in "late July" with the directive to reorganize. R.48, Williams Affidavit ¶ 9. (Unfortunately Petitioner's Brief failed to make clear, at 4, that Ted Arts was the President of Canteen Corporation and Williams' boss.)

(1995). But, Williams testified that he considered petitioner to be a candidate for the August job.

In making my management selections [per Arts' directions], I considered the capabilities of . . . Finnell and the three 4Cs District Managers who reported to me in North Carolina.

R.48, Williams Affidavit ¶ 13. And, according to a company memorandum written by Williams, the reason for the July reduction in petitioner's territory was to "allow a more even distribution of the present volume" and had nothing to do with his performance. R.55 at attached Trial Ex.13.

Respondent proffered no evidence of any reason for its reorganization and admitted that petitioner's division had improved during his tenure. Pet. App. 12, 56 F.3d at 547. Petitioner also showed that he was replaced by a 40 year old with a less outstanding work history. Finnell's prior "competent minus" rating meant that he was performing on the low side of competent. Also, Williams had not supervised Finnell since the end of 1989. R.48, ¶¶ 6, 7.

Petitioner thus presented both direct and circumstantial evidence of age discrimination. Direct evidence is "evidence which, if believed, would prove the existence of a fact . . . without any inference or presumptions." *Bodenheimer v. PPG Indus., Inc.*, 5 F.3d 955, 958 (5th Cir. 1993), quoted at Pet. App. 16, 56 F.3d at 548. The ultimate facts that petitioner must prove are that his age motivated Williams to discharge him. See, *Hazen Paper Co. v. Biggins*, 113 S. Ct. 1701, 1706 (1993). Williams' statement, "O'Connor, you are too damn old for this kind of work,"

made shortly after Williams' decision to terminate petitioner, is direct evidence that petitioner's age motivated Williams to terminate him. This is earwitness testimony. No inferences are required. Petitioner heard Williams confess his unlawful motive. Arguably petitioner has earwitness testimony only as to Williams' intent, and only "smoking gun" (circumstantial) evidence of the connection between his intent and his action - Williams did not say "O'Connor, you are too damn old for this kind of work and therefore you're fired" - but the difference is academic. Either direct or circumstantial evidence suffices, and the circumstances readily allow the *corpus delicti* inference to be made here because the discriminatory remark could have been made immediately after the decision to terminate was reached. See, n.6, *supra*.

The courts below faulted petitioner because he produced no "context" for Williams' remark. Pet. App. 31, 829 F. Supp. at 158; Pet. App. 18, 56 F.3d at 549. But, there may have been no context. Williams may have simply made the remark and then realized what he had said and immediately left. The circuit court then reasoned that this assumed absence of context meant that petitioner had fatally failed to show "nexus" between Williams's intent and action. *Id.* The circuit court thus managed to dismiss the "smoking gun" remark by faulting petitioner for not showing what may never have happened, and also by isolating its consideration of this remark from all the other evidence in the case.⁷ The "nexus" requirement as

⁷ The circuit court never considered whether the evidence in its totality made out a *prima facie* case of direct or circumstantial evidence.

applied by the circuit court so seriously constricts consideration of the proof that practically a signed confession is required to show liability.

Of course there must be some reasonable connection between Williams's intent and his action to support the inference that the one caused the other. Causation must be shown; but it was amply shown on this record taking the evidence in the light most favorable to petitioner and not resolving any material issues of fact, as required by *Fed.R.Civ.P.* 56.⁸ A reasonable jury could have found that Williams made his July remark at the office during business hours; that he abruptly left after confessing to an unlawful motive and being reprimanded by the Human Relations Manager, indicating a realization of having confessed to an unlawful motive; that he made the decision to terminate petitioner at about that same time; that he made a summer-long series of age-biased remarks; that petitioner was performing competently; that the geographic reassignment was done "to allow a more even distribution of the present volume" and not because of petitioner's performance; and that petitioner was more qualified than Finnell. "A fair-minded jury could return a verdict for the plaintiff on [this] evidence." *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 252 (1986).

⁸ The circuit court resolved conflicts in the evidence as to two crucial issues of fact: why Williams reduced petitioner's territory in July, Pet. App. 14, and why Williams discharged Petitioner in August, Pet. App. 12. The court also reached these resolutions *without considering the pretext evidence* of Williams' summer long series of age-discriminatory remarks. The employer's rebuttal was folded into Petitioner's presumptive case, but Petitioner's evidence of pretext was omitted.

CONCLUSION

The judgment of the United States Court of Appeals for the Fourth Circuit should be reversed.

Respectfully submitted, this 19 day of February, 1996.

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